

**DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
THURSDAY, JUNE 18, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**NATIONAL HIGH VOLTAGE SERVICES, INC. v. SETON PACIFIC CONSTRUCTION, INC., et al.
Case No. CU25-00863**

Motion to Withdraw by The Mazzola Law Office as to Defendants 625 East H. St Development LLC; Casey Anderson; Pacific Construction; Seton Inc.; Atlas Underground Construction; Tryzmac, Inc.

TENTATIVE RULING:

ORDER TO SHOW CAUSE

Parties to appear.

Upon confirmation by the Mazzola Law Office of service of the Order to Show Cause upon its clients, the court intends to grant the pending unopposed motions to withdraw. (Notably, no motion is pending as to Casey Anderson in his capacity as co-trustee of the Anderson Family Trust. This may be an oversight?)

Since issuance of the Order to Show Cause, no substitution of counsel has been filed for any of the defendants in which The Mazzola Law Office seeks to be relieved. The Order to Show Cause directed that the substitution be filed before the June 18, 2026 hearing.

No corporation or trust with more than one beneficiary can appear pro per. The court previously continued the pending motions to withdraw and issued an Order to Show Cause as to why the answer and cross-complaint filed on behalf of 625 East H. St Development LLC; Casey Anderson, as co-trustee; Pacific Construction; Seton Inc.;

Atlas Underground Construction; Tryzmac, Inc. should not be stricken in the absence of an attorney to maintain actions on behalf of these entities.

The Mazzola Law Office sought to withdraw as counsel for Casey Anderson but did not specify it was for Casey Anderson individually and as co-trustee of the Anderson Family Trust. A substitution of counsel has been filed for Valjean Anderson as an individual but does not specify it is as co-trustee for the Anderson Family Trust. The court appreciates the response by Seren Legal to the Order to Show Cause and understands that Seren Legal is not retained to represent the trust and intends to represent Valjean Anderson as an individual and as co-trustee solely in representative capacity. An updated substitution should be filed forthwith.

Probate Code section 15620 provides that unless otherwise provided in the trust instrument, a power vested in two or more trustees may only be exercised by their unanimous action.

The court understands that Casey and Valjean Anderson have initiated dissolution proceedings and have adverse interests. The automatic temporary restraining orders (“ATROS”) associated with a marital dissolution prohibit either party from taking action to dissolve the trust absent stipulation and/or court order.

Per Probate Code section 15620, the trust itself cannot be represented by multiple attorneys with interests that are adverse. But, the court understands that the trust is not named as a party to a contract or as a defendant to a tort, but as an alter ego in which assets are alleged to have been converted to avoid judgment and collection. It appears that the individual co-trustees have different and potentially adverse interests in protecting the assets of the trust from judgment and that continued separate defense in a representative capacity is appropriate under these circumstances. However, a pro per still cannot appear on behalf of a co-trustee for a trust with more than one beneficiary.

As no substitution of counsel has been filed, the court strikes the cross-complaint of Seton Pacific Construction. Additionally, the court strikes the Answer to the Second Amended Complaint filed by Seton Pacific Construction sued as Seton Pacific Construction, Inc.; 625 East H. St Development LLC; Seton, Inc.; Atlas Underground Construction; and Trzymac, Inc. The answer to the Second Amended Complaint was the only responsive pleading filed by these named defendants. As to all parties in which the answer to the Second Amended Complaint has been stricken, a default may be taken forthwith.

AAKRITI SUBEDI v. FIDELITY TECHNOLOGY GROUP, LLC
Case No. CU25-10331

Defendant’s Motion to Quash Service of Summons